

## 25STCV01640 25STCV01640

County: los-angeles

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Case Number: 25STCV01640 Hearing Date: July 1, 2026 Dept: 406

JAIME VILLAREAL,

Plaintiff,

v.

MARVIN ENGINEERING CO.,

INC., et al.,

Defendants.

Case No.: 25STCV01640

Hearing Date: July 1, 2026

[TENTATIVE]

order RE:

defendant marvin engineering co., inc.'s

motion for summary adjudication

### BACKGROUND

On January 21, 2025, Plaintiff Jaime

Villareal filed this action against Defendants Marvin Engineering Co., Inc. and

Robert Huizar. The complaint asserts claims for (1) harassment, (2)

retaliation, (3) failure to prevent, (4) violation of Labor Code section

1102.5, (5) violation of Labor Code section 6310, (6) violation of Labor Code

section 232.5, and (7) wrongful termination.

On March 16, 2026, Defendant Marvin Engineering filed the instant motion for summary adjudication of the second, fourth, fifth, and sixth causes of action. Plaintiff has not filed an opposition.

## LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1101.) To establish a triable issue of material fact, the party opposing the motion must produce “substantial responsive evidence.” (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

## DISCUSSION

I.

FEHA Retaliation

a. Legal Standard

To establish a prima facie case of retaliation under the FEHA, a plaintiff must show: (1) she engaged in a protected activity; (2) the employer subjected the employee to an adverse employment action; and (3) a causal link existed between the protected activity and the employer's action. (*Yanowitz v. L'Oreal USA, Inc.* (2007) 36 Cal.4th 1028, 1042.)

Under the McDonnell-Douglas framework, (1) the plaintiff must initially establish a prima facie case of discrimination, (2) the defendant must then articulate a legitimate nonretaliatory explanation for its acts, and (3) in response, the plaintiff must show that this explanation is pretextual. (*Patten v. Grant Joint Union High School Dist.* (2005) 134 Cal.App.4th 1378, 1384.) Therefore, on summary judgment, the defendant employer must either (1) undermine an element of the plaintiff's prima facie case or (2) provide a legitimate nonretaliatory reason for the adverse employment action. (*Cornell v. Berkeley Tennis Club* (2017) 18 Cal.App.5th 908, 926.)

In the face of a nondiscriminatory reason, the plaintiff must offer "substantial evidence" allowing a reasonable conclusion that "the employer engaged in intentional discrimination." (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1007.) "The employee's evidence must relate to the motivation of the decision makers and prove, by nonspeculative evidence, 'an actual causal link between prohibited motivation and termination.'" (*Id.* at p. 1008, citing *Featherstone v. Southern California Permanente Medical Group* (2017) 10 Cal.App.5th 1150, 1159.)

b.

Application

Here,

Defendant terminated Plaintiff because he engaged in a physical altercation with a coworker which was captured on surveillance video. (Def.'s Stmt. of Undisputed Facts (UF) 2-4.) Defendant has a written policy against workplace violence, which establishes that violence is grounds for termination. (UF 5-6.) Defendant's Vice President of Materials & Facilities, Chuck Minter, investigated the incident and determined that Plaintiff and the coworker violated the workplace violence policy. (UF 7-15.) Therefore, Mr. Minter

terminated both Plaintiff and the coworker. (Ibid.) At the time of this decision, Mr. Minter was unaware that Plaintiff had complained about discrimination, harassment, unsafe conditions, or other violations of law. (UF 16.)

These

undisputed facts establish as a matter of law that Defendant had a legitimate, non-retaliatory reason for terminating Plaintiff. In the face of this evidence, Plaintiff has failed to present “substantial evidence” that the termination was actually motivated by prohibited animus. (See Foroudi, *supra*, 57 Cal.App.5th at pp. 1007-08.) Therefore, no reasonable trier of fact would find that Defendant engaged in retaliation in violation of FEHA. Accordingly, summary adjudication of the second cause of action is warranted.

## II. Labor Code Retaliation

Labor Code section

6310 prohibits retaliation against an employee who has “[m]ade any oral complaint to . . . their employer” or “[r]eported a work-related fatality, injury, or illness.” (Lab. Code, § 6310(a).) Labor Code section 232.5 makes it unlawful for an employer to prevent employees from disclosing information about the employer’s working conditions or to retaliate against an employee who discloses such information.

Absent

authority providing otherwise, the McDonnell-Douglas test applies to retaliation claims under Labor Code sections 6310 and 232.5. (See *Scheer v. Regents of University of California* (2022) 76 Cal.App.5th 904, 913-17.) For the reasons discussed above, Defendant had a legitimate, non-retaliatory reason for terminating Plaintiff. Therefore, the fifth and sixth causes of action fail as a matter of law.

III.

## Whistleblower Retaliation

Labor Code section 1102.5(b) makes

it unlawful for an employer to retaliate against an employee for reporting a perceived violation of a local, state, or federal statute or regulation.

“[O]nce it has been demonstrated by a preponderance of the evidence that an activity proscribed by Section 1102.5 was a contributing factor in the alleged

prohibited action against the employee, the employer shall have the burden of proof to demonstrate by clear and convincing evidence that the alleged action would have occurred for legitimate, independent reasons even if the employee had not engaged in activities protected by Section 1102.5." (Id., § 1102.6.) The traditional McDonnell-Douglas framework does not apply, and the plaintiff is not required to show that the employer's proffered justification is pretextual. (Lawson v. PPG Architectural Finishes, Inc. (2022) 12 Cal.5th 703, 712.)

For the reasons articulated above, Defendant has shown that Plaintiff's protected activity was not a contributing factor in his termination. Defendant has established by clear and convincing evidence that it would have terminated Plaintiff for legitimate, independent reasons even if Plaintiff had not engaged in protected activity. Plaintiff has failed to rebut this showing and presents no evidence that Defendant "had at least one retaliatory reason that was a contributing factor in the action." (See Lawson, supra, 12 Cal.5th at p. 716.) Therefore, the fourth cause of action fails as a matter of law.

## CONCLUSION

Defendant Marvin Engineering Co., Inc.'s motion for summary adjudication of the second, fourth, fifth, and sixth causes of action is GRANTED.